

Hong Kong Airport (Control of Obstructions) (No. 2) Order 1997

(Cap. 301 sub. leg. D)

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Hong Kong Airport (Control of Obstructions) (No. 2) Order 1997

(Cap. 301, section 3(1AA) and (1A))

(Enacting provision omitted—E.R. 5 of 2020)

[20 June 1997] *L.N. 349 of 1997*

(Format changes—E.R. 5 of 2020)

1. *(Omitted as spent—E.R. 5 of 2020)*

2. *(Repealed L.N. 167 of 2021)*

3. Prescribed areas and restriction of heights of buildings

- (1) Each of the areas delineated in red on the plans specified in subsection (2) is an area within which no building shall exceed the height above the principal datum (referred to in the plans as “the restricted height”) specified in the plans in relation to that area, and the principal datum is also known as Hong Kong Principal Datum. *(L.N. 167 of 2021)*
- (2) The plans are those under series AHRP 2021, signed by the Secretary and deposited in the Land Registry, and named—
 - (a) Sheet HKE ;
 - (b) Sheet HKW ;
 - (c) Sheet 5-SE-B ;
 - (d) Sheet 5-SE-D ;
 - (e) Sheet 6-SW-A ;
 - (f) Sheet 6-SW-B ;

- (g) Sheet 6-SW-C ;
- (h) Sheet 6-SW-D ;
- (i) Sheet 6-SE-A ;
- (j) Sheet 6-SE-C ;
- (k) Sheet 6-SE-D ;
- (l) Sheet 9-NW-B ;
- (m) Sheet 9-NW-D ;
- (n) Sheet 9-NE-A ;
- (o) Sheet 9-NE-B ;
- (p) Sheet 9-NE-C ;
- (q) Sheet 9-NE-D ;
- (r) Sheet 9-SW-B ;
- (s) Sheet 9-SE-A ;
- (t) Sheet 9-SE-B ;
- (u) Sheet 10-NW-A ;
- (v) Sheet 10-NW-B ;
- (w) Sheet 10-NW-C ;
- (x) Sheet 10-NW-D ;
- (y) Sheet 10-NE-A ;
- (z) Sheet 10-NE-B ;
- (za) Sheet 10-NE-C ;
- (zb) Sheet 10-NE-D ;
- (zc) Sheet 10-SW-A ;
- (zd) Sheet 10-SW-B ;
- (ze) Sheet 10-SE-A ;
- (zf) Sheet 10-SE-B ;

- (zg) Sheet 11-NW-A ;
- (zh) Sheet 11-NW-B ;
- (zi) Sheet 11-NW-C ;
- (zj) Sheet 11-NW-D ;
- (zk) Sheet 11-SW-A ;
- (zl) Sheet 11-SW-B ;
- (zm) Sheet 11-SW-C ;
- (zn) Sheet 11-SE-A ;
- (zo) Sheet 11-SE-C ;
- (zp) Sheet 11-SE-D ;
- (zq) Sheet 12-SW-C ;
- (zr) Sheet 14-NW-B ;
- (zs) Sheet 14-NW-D; and
- (zt) Sheet 16-NW-A. (*L.N. 167 of 2021*)

4. (*Repealed L.N. 116 of 1998*)

5. Disapplication

- (1) This Order shall not apply to— (*L.N. 167 of 2021*)
 - (a) any building erected in accordance with plans approved by the Building Authority before 31 May 2022;
 - (b) any building that, at the time of erection, was exempted from the provisions of the Buildings Ordinance (Cap. 123) by virtue of section 41(1)(a) of that Ordinance;
 - (c) any building that, at the time of erection, was exempted from the provisions of the Buildings Ordinance (Cap. 123) by virtue of section 41(1)(aa) of that Ordinance and is erected by or on behalf of the Housing

Authority in accordance with plans endorsed by the Housing Authority or the Office of the Permanent Secretary for Transport and Housing (Housing) before 31 May 2022;

- (d) any building erected before 31 May 2022 that, at the time of erection, was exempted from the provisions of the Buildings Ordinance (Cap. 123) by virtue of section 41(1)(b) of that Ordinance;
- (e) part of a building referred to in paragraph (a) or (c) that comprises a structure the construction of which is minor works or designated exempted works—
 - (i) carried out in relation to the external part of the building; and
 - (ii) completed before 31 May 2022; and (*L.N. 167 of 2021*)
- (f) any building that is a structure projecting skywards the construction of which is minor works or designated exempted works completed before 31 May 2022. (*L.N. 167 of 2021*)

(2) In this section—

Building Authority (建築事務監督) means the Director of Buildings;

designated exempted works (指定豁免工程) has the meaning given by section 2(1) of the Building (Minor Works) Regulation (Cap. 123 sub. leg. N);

minor works (小型工程) has the meaning given by section 2(1) of the Buildings Ordinance (Cap. 123);

plans approved by the Building Authority (建築事務監督批准的圖則) means plans approved by the Building Authority under—

- (a) the Buildings Ordinance (Cap. 123); or

(b) the Buildings Ordinance 1935 (18 of 1935). (*L.N. 167 of 2021*)

(L.N. 167 of 2021)